

**IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, STATE OF FLORIDA
FAMILY LAW DIVISION**

In re: the Marriage of:

SARAH HANSON,

Petitioner/Wife,

Case Number: 2024-DR-001150

and

Division: A

CHRISTOPHER HANSON,

Respondent/Husband.

_____ /

**SECOND ** EMERGENCY MOTION ** FOR RECONSIDERATION
OR IN THE ALTERNATIVE, TO VACATE ORDER GRANTING
MOTION FOR STAY PENDING APPEAL**

Petitioner, Sarah Hanson (“**Wife**”), by and through the undersigned attorney, and pursuant to Fla. Fam. L. R. P. 12.530 and Fla. R. App. P. 9.310, files this Second ** Emergency Motion ** for Reconsideration or in the Alternative, to Vacate Order Granting Motion for Stay Pending Appeal. Respectfully, this motion is being filed because the Court did not enter an Emergency Motion Handling Order relating to the initial emergency motion. As grounds therefore, Petitioner states the following:

1. **Parties.** The parties to this action are Petitioner, Sarah Hanson (“**Wife**”) and Respondent, Christopher Hanson (“**Husband**”), collectively, (the “**Parties**”).
2. **Pending Action.** Pending before the Court is Wife’s Amended Petition for Dissolution of Marriage with Minor Children and for Other Related Relief (“**Wife’s Amended Petition**”) [DIN 42] and Husband’s Counter-Petition for Dissolution of Marriage [DIN 79].
3. **Minor Children.** There are two (2) minor children who were born to the Parties during the marriage, to wit: H.G.H., a female, born October 2017, at Tampa, Florida; and H.G.H., a female, born July 2019, at Tampa, Florida (the “**Children**”).
4. **Husband’s Motion to Transfer Venue.** On April 24, 2025, Husband filed a Motion to

Transfer Venue and/or Second Verified Motion to Disqualify Judge Ayers [**DIN 183**].

5. **Hearing on Motion to Transfer Venue.** The venue issues set forth in Husband's motion were heard by the Court on June 3, 2025. A copy of the Transcript of Proceedings is attached hereto as "**Exhibit A.**"
6. **Order Denying Motion to Transfer Venue.** On June 23, 2025, the Court entered an Order Denying Respondent's Motion to Transfer Venue and/or Second Verified Motion to Disqualify Judge Ayers (as to Venue) [**DIN 204**].
7. **Husband's Motion to Vacate.** On July 3, 2025, Husband filed his Motion to Vacate, for Rehearing/Reconsideration on Order Denying Motion to Transfer Venue Based on Violations of Husband's Constitutional Rights to Due Process Including a Fair and Impartial Trial [**DIN 211**].
8. **Husband's Notice of Appeal.** Twenty-eight days later, on July 22, 2025, Husband filed his Notice of Appeal [**DIN 216**], appealing the Order Denying Respondent's Motion to Transfer Venue and/or Second Verified Motion to Disqualify Judge Ayers (as to Venue).
9. **Husband's Motion to Stay Pending Appeal.** On July 22, 2025, Husband filed his Motion to Stay Pending Appeal [**DIN 215**].
10. **Order Denying Husband's Motion to Vacate.** On August 1, 2025, the Court entered an Order Denying Husband's Motion to Vacate.
11. **Order Granting Husband's Motion to Stay.** On August 1, 2025, without conducting a hearing or considering legal argument, the Court entered an Order Granting Motion for Stay Pending Appeal.
12. **Husband Previously Acknowledged Hillsborough County Proper Venue.** Regarding the choice of venue, paragraph four (4) of Wife's Amended Petition for Dissolution of

Marriage [DIN 42] states “Venue is proper in the Thirteenth Judicial Circuit because the Parties last resided together as Husband and Wife in Hillsborough County. Paragraph four (4) of Husband’s Answer to Wife’s Amended Petition for Dissolution of Marriage [DIN 79] responds by stating “Admitted.” Furthermore, paragraph three (3) of Husband’s Counter-Petition for Dissolution of Marriage [DIN 79] states “Venue is proper in Hillsborough County because this is where the intact marriage of these Parties was last evidenced by a continuing union and the intent to remain married to each other.” Accordingly, the Court finds that Hillsborough County is the appropriate venue for this action.

13. **Florida’s Venue Statute.** Section 47.011, Florida Statutes is the controlling venue statute in this matter. In general, an action shall be brought only in a county where the defendant resides, where the cause of action accrued, or where the property in litigation is located.
14. **Application of Venue Statute to Dissolution of Marriage Action.** For purposes of applying section 47.011, Florida Statutes to a dissolution of marriage action, the cause of action arises in the last county where the parties resided as husband and wife with the common intent to remain married. *Carroll v. Carroll*, 347 So. 2d 771, 772 (Fla. 1977); *Kopecky v. Kopecky*, 967 So. 2d 1109, 1111 (Fla. 4th DCA 2007).
15. **Forum Non-Conveniens.** Generally, a party may challenge venue because the venue chosen by the petitioner was legally improper or because the petitioner’s chosen venue (although proper) is an “inconvenient forum.” The inconvenient forum argument comes from section 47.122, Florida Statutes, which states that “[f]or the convenience of the parties or witnesses or in the interest of justice, any court of record may transfer any civil action to any other court of record in which it might have been brought.”

Notwithstanding, it is legal error and an abuse of discretion for a court to utilize forum non conveniens to transfer an action to a venue not permitted by the applicable venue statute(s), as a court can only transfer an action to a jurisdiction where the action “might have been brought.” *See Vitale v. Vitale*, 994 So. 2d 1242, 1243 (Fla. 4th DCA 2008); *McGee v. McGee*, 145 So.3d 955, (Fla. 1st DCA 2014).

16. Only Basis to Change Venue Alleged in Husband’s Motion. It should be noted that the only paragraphs of Husband’s motion seeking a venue transfer that appear to directly address Husband’s request for a transfer of venue are paragraphs 97 and 98, which state the following:

- a. **Paragraph 97:** It’s necessary that the Court transfer the case to a new Judge, or ideally, to a new venue such as Pasco County where Wife resides so that, the litigants have “their disputes resolved by impartial judges” “free from bias and prejudice” in assessing these issues critical to the litigants and children’s future well-being as required by *Berry v. Berry* 765 So.2d 855 (Fla. 5th DCA 2000).
- b. **Paragraph 98:** Given the evidence of bias in favor of Mr. Davis, Ms. Hodz, and the other attorneys involved, at the expense of Husband’s due process rights and other interests, it’s obvious Husband has no change (sic) at fair process in front of Judge Ayers, and likely in Hillsborough County at all.

17. The Berry Case Does Not Address Venue. It should be noted that the *Berry* case cited in paragraph 97 of Husband’s motion addresses the disqualification of a trial judge and not a transfer of venue.

18. No Other Proper Venue Exists. Perhaps most importantly, the limitation of the transfer to "any other court of record in which it might have been brought" in section 47.122,

Florida Statutes means that any transfer is limited to a county that would have been a proper venue initially, which is only Hillsborough County. The Court cannot transfer venue for the convenience of the parties or witnesses, or in the interests of justice, to a forum that would not have been appropriate for the filing of a petition for dissolution of marriage in the first place.

19. Husband's Argument Regarding Transfer of Venue. Husband's argument during the hearing on June 3, 2025, was effectively a complaint as to how the case was progressing and his belief that even though The Honorable Kelly Ayers granted Husband's Second Motion, "all of the attorneys and Judges that [Husband] dealt with are in Hillsborough County and [Husband] know[s] I [has] not gotten anything close to a fair process and it terrifies [Husband] how brazen the unfairness has been. And [Husband] think[s] that going to a different venue serves everyone." (Transcript, page 10, lines 2-7). However, Husband offered no actual evidence to support his assertion.

20. Lack of Evidence of Bias. Husband's Motion to Transfer Venue and/or Second Verified Motion to Disqualify Judge Ayers [**DIN 184**] resulted in the entry of an Order wherein Judge Ayers disqualified herself on April 28, 2025. However, Husband has not proven, nor can he even reasonably believe, that that all of the circuit judges situated in the Thirteenth Judicial Circuit are biased against Husband or in favor of Wife's counsel.

21. Husband's Motion to Stay Does Not Meet the Likelihood of Success Burden. Husband's Motion to Stay Proceedings argues that the Court should stay the proceedings pending appeal because of discovery issues (paragraphs 3, 4, 5, 6, 7, and 8), alleged weaponization of the Children (paragraph 3), a blanket self-serving statement that "[a] stay will serve the interests of justice as it will allow the parties to have these important matters

determined by an impartial tribunal (paragraph 9), and a blanket, speculative, and self-serving statement that “[a]llowing the proceedings to continue in the [Thirteenth] Judicial Circuit under these circumstances poses a great risk of permanent harm to the Children (paragraph 10).” Husband’s motion fails to demonstrate a likelihood of success on the merits or irreparable harm if the stay is not granted.

22. Harm in Staying the Proceedings. The paramount concern in family law cases involving a child is the best interests of the child. See *Hassenplug v. Hassenplug*, 346 So.3d 149 (Fla. 2d DCA 2022). Husband’s repeated allegations that Wife’s counsel is responsible for delay is contradicted by the record, which shows that Husband engaged in a pattern of conduct deliberately obstructing the timely progression of the proceedings. The Order Granting Motion for Stay Pending Appeal entered by the Court on August 1, 2025, resulted in the cancellation of the following motions that were scheduled to be heard on August 8, 2025, none of which were scheduled to be heard for the first time:

- a. Wife’s Motion for Appointment of Guardian Ad Litem [**DIN 69**] filed December 13, 2024. As of the date of the filing of this motion, Wife’s Motion for Appointment of Guardian Ad Litem has been pending before the Court for 234 days. This motion was heard by the Honorable Kelly Ayers on April 9, 2025, however; Judge Ayers was unable to enter a ruling on same due to the filing of Husband’s Motion to Transfer Venue and/or Second Verified Motion to Disqualify Judge Ayers on April 24, 2025.
- b. Wife’s Motion for Psychological Examination of Husband [**DIN 77**] filed December 13, 2024. As of the date of the filing of this motion, Wife’s Motion for Psychological Examination of Husband has been pending before the Court for 234 days. This motion was heard by the Honorable Kelly Ayers on April 9, 2025, however; Judge

Ayers was unable to enter a ruling on same due to the filing of Husband's Motion to Transfer Venue and/or Second Verified Motion to Disqualify Judge Ayers on April 24, 2025.

- c. Wife's Verified Motion for Temporary Relief [**DIN 96**] filed January 6, 2025. As of the date of the filing of this motion, Wife's Verified Motion for Temporary Relief has been pending before the Court for 210 days. This motion was heard by the Honorable Kelly Ayers on April 9, 2025, however; Judge Ayers was unable to enter a ruling on same due to the filing of Husband's Motion to Transfer Venue and/or Second Verified Motion to Disqualify Judge Ayers on April 24, 2025.
- d. Wife's Motion for Vocational Evaluation of Husband [**DIN 114**] filed January 31, 2025. As of the date of the filing of this motion, Wife's Motion for Vocational Evaluation of Husband has been pending before the Court for 185 days. This motion was previously scheduled to be heard by the Honorable Kelly Ayers on April 9, 2025, but was not because Husband dragged the proceeding out so long that not all the scheduled motions could be heard.
- e. Wife's Objections to Husband's Second Request for Production of Documents and Motion for Protective Order [**DIN 101**] filed January 16, 2025. As of the date of the filing of this motion, Wife's Objections to Husband's Second Request for Production of Documents and Motion for Protective Order has been pending before the Court for 200 days. This motion was scheduled to be heard by the Honorable Kelly Ayers on both February 12, 2025, and April 24, 2025; however, the completion of the hearing was impeded by Husband's repeated introduction of repetitive, irrelevant, and immaterial arguments which only served to unnecessarily prolong the proceeding.

In other words, as to paragraph 21(a-c), Continued suspension of the proceedings pending appeal will unnecessarily prolong resolution of important issues concerning the Children—an outcome that evidently serves Husband’s purposes.

23. The Court Should Not Permit Unnecessary Delay. In summary, Wife respectfully asserts that the stay entered on August 1, 2025, will continue to cause unnecessary delay in the litigation, most concerningly, the issues relating to the Children. As such, Wife requests that the Court reconsider or in the alternative, vacate the Order Granting Motion for Stay Pending Appeal.

24. Attorney’s Fees, Costs, and Suit Money. Wife engaged the undersigned attorney to represent her in this action and is obligated to pay attorney’s fees, costs, and suit money for professional services rendered. Wife asserts that Husband’s efforts to delay the proceedings rises to the level of unnecessary and vexatious litigation, bad faith conduct, and an attempt by Husband to thwart prior rulings by the Court and cause Wife to incur unnecessary attorney’s fees, costs, and suit money. Therefore, the Court should award Wife her attorney’s fees, costs, and suit money incurred in connection with this Objection pursuant to the Court’s inherent authority. See *Rosen v. Rosen*, 696 So.2d 679 (Fla. 1997); *Wrona v. Wrona*, 592 So.2d 694 (Fla. 2d DCA 1991); *Young v. Hector*, 884 So.2d 1025 Fla. 3d DCA 2004); *Sutter v. Sutter*, 578 So.2d 788 (Fla. 4th DCA 1991); *Moakley v. Smallwood*, 826 So.2d 221 (Fla. 2002); *Dralus v. Dralus*, 627 627 So.2d 505 (Fla. 2d DCA 1993).

WHEREFORE, the Wife, Sarah Hanson, respectfully requests that this Honorable Court enter an Order awarding the following relief:

- A. Entertain this motion on an emergency basis;
- B. Reconsider or in the alternative, vacate the Order Granting Motion for Stay Pending Appeal;
- C. Require Husband to pay Wife's reasonable attorney's fees, costs, and suit money incurred in connection with this motion; and
- D. Grant any other relief that the Court finds to be necessary or appropriate in this matter.

**VERIFICATION OF WIFE
PURSUANT TO SECTION 92.525, FLORIDA STATUTES**

Under penalties of perjury, I, Sarah Hanson, declare that I have read the foregoing *Second ** Emergency Motion ** for Reconsideration or in the Alternative, to Vacate Order Granting Motion for Stay Pending Appeal*, and that the facts stated in it are true.

8/21/2025

Dated

Signed by:

5E97403E5F7541E...
Sarah Hanson
Wife

Dated: 8/21/2025

Respectfully submitted,

DocuSigned by:

Scott Paul Davis

Scott Paul Davis, Esq., B.C.S.

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(813) 251-6222 (telephone)

Counsel for Wife

CERTIFICATE OF SERVICE

I hereby certify that, on 8/21/2025, a true and correct copy of the foregoing
was served via the Florida Courts E-Filing Portal on Husband, Christopher A. Hanson, pro se.

DocuSigned by:

Scott Paul Davis

Scott Paul Davis, Esq., B.C.S.

IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, STATE OF FLORIDA
FAMILY LAW DIVISION

IN RE: THE MARRIAGE OF:

SARAH HANSON,

Petitioner/Wife,

Case No. 24-DR-001150

and

Division: "A"

CHRISTOPHER HANSON,

Respondent/Husband.

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TRANSCRIPT OF PROCEEDINGS

BEFORE: **HONORABLE MATTHEW L. FELIX**
(Appeared Via Zoom)

DATE: June 3, 2025

TIME: Commencing at 12 p.m.

REPORTED BY: Christina Ann Taylor, RPR
Notary Public, State of Florida

STENOGRAPHICALLY RECORDED (ORIGINAL)
COMPUTER-AIDED TRANSCRIPTION (COPY)

1 APPEARANCES:

2
3 For the Petitioner/Wife:

4
5 **SCOTT P. DAVIS, ESQUIRE**

Tampa Bay Family Law & Mediation, P.A.

6 P.O. Box 18667

7 Tampa, Florida 33679-8667

(Appeared Via Zoom)

8
9
10 For the Respondent/Husband:

11
12 **PRO SE**

13 (Appeared Via Zoom)

14
15
16
17
18 ALSO PRESENT:

19 Sarah Hanson – Appeared Via Zoom

P R O C E E D I N G S

THE COURT: We are here on Case Number 24-DR-1150, Hanson versus Hanson. Can I get appearances for the record starting with the Petitioner/Wife, please.

MR. DAVIS: Scott Davis representing the Petitioner/Wife, Sarah Hanson.

THE COURT: Good afternoon, Mr. Davis.

MR. DAVIS: Good afternoon, sir.

THE COURT: And you are Mrs. Hanson, Mrs. Sarah Hanson, correct?

MRS. HANSON: Yes, Your Honor.

THE COURT: Good afternoon. And then for the Respondent/Husband?

MR. HANSON: This is Chris Hanson on my own behalf, Your Honor.

THE COURT: Good afternoon, Mr. Hanson. How are you?

MR. HANSON: I'm okay. Thank you, Judge.

THE COURT: Okay. So I have us here for a 30-minute hearing on Motion to Disqualify Judge Ayers which has, obviously, been resolved and Motion to Transfer Venue, is that correct?

MR. DAVIS: Yes, Your Honor.

THE COURT: All right.

1 MR. HANSON: Yes, Your Honor.

2 THE COURT: Mr. Hanson, it's your motion. You
3 may proceed.

4 MR. HANSON: Okay. Your Honor, I know that
5 you're coming in to this late and at a difficult
6 time. And I'm not certain what you've reviewed or
7 not but I'll just try to be relatively brief here.
8 There's two Motions to Disqualify and I'd like both
9 of those to be considered in the Motion to Transfer
10 hearing that we're having today. There's a really
11 long --

12 MR. DAVIS: I would object to that.

13 THE COURT: I'm sorry, Mr. Hanson. There's an
14 objection on the floor.

15 MR. DAVIS: Yes, sir. Only one motion is set
16 for hearing which is the one that is -- that's on the
17 notice which is -- was e-filed, excuse me one second,
18 I'm sorry, April 24th, 2025.

19 THE COURT: That's Bates number or not Bates
20 number, excuse me, Docket Number 183, is that
21 correct?

22 MR. DAVIS: Yes, sir, it is.

23 THE COURT: Okay. I'm sorry, Mr. Hanson, you're
24 saying that there were two Motions to Disqualify that
25 you want considered?

1 MR. HANSON: Well, yes, Your Honor. There's two
2 Motions to Disqualify that tell one coherent story.
3 And that's -- it's really all part of the same
4 argument on Transfer of Venue. Your Honor, I don't
5 understand what's been occurring this past year but
6 I've been involved in litigation enough to know when
7 there's very serious ethical concerns. And I don't
8 raise those lightly.

9 And if you've read Docket Number 183 you'll see
10 a pretty concerning story in terms of ethical
11 violations and judicial compliance. And, really, I
12 was reviewing the record today and it's judicial
13 gaslighting in a lot of instances, Your Honor. I
14 sent you a copy of the April 4th of 2025 hearing
15 earlier and from Page 75 there's an excerpt where the
16 Judge had rolled her eyes at me, Judge Ayers, at
17 least three times, the third time or so I said
18 something.

19 She denied doing it and suggested that she was
20 going to get the video. I asked her to please get
21 the video. I noted that I would swear on a Holy
22 Bible at that moment that she had done that and she
23 had. So that's my experience with the Thirteenth
24 Circuit. What I'm asking for is very simple. It's
25 less in terms of discovery that I've already provided

1 to Wife yet Wife was the non-disclosing spouse at the
2 time of the PMA, post marital agreement, that was
3 issued -- that was entered into before any attorneys
4 were involved.

5 I've asked the Judge to void the post marital
6 agreement because Judge Ayers suggested that's what I
7 needed to get this financial discovery. And let's be
8 clear about how low Mr. Davis has sunk here. He's
9 using my children as pawns. There's no doubt about
10 that. If you look at the record, the lack of any
11 explanation or justification for the timing of those
12 four motions on December 13th when my attorney was
13 taken away on less than a day's notice that was an
14 attack.

15 And it continues the same pattern of intentional
16 delay trying to avoid producing the records and
17 answering even the mandatory disclosure questions.
18 That's on appeal on a writ because Judge Ayers
19 excused them from certifying what the Rule requires.
20 It's really been outrageous. And, Your Honor, it's
21 not nothing against you I feel a bit embarrassed that
22 I'm in this position but I've dealt with what's come
23 my way.

24 I would ask Mr. Davis to show you one example of
25 an inappropriate email I've sent, something

1 inappropriate I've done during a hearing. There's a
2 lot of conclusions that Judge Ayers and my former
3 attorney, Mr. Hodz, and Mr. Davis have thrown out
4 there that don't have any support. They'll say these
5 conclusions about me. I have to look over my
6 shoulder because now Mrs. Hanson is trying to find
7 anything to complain about me as a dad.

8 I'm trying to get through this. And I've said
9 since day one I have one objective and that's getting
10 some financial discovery. If you look at the story
11 everything that they have done has been obstruction
12 to that, an increasing pattern of harassment and
13 obstruction, pushing my attorneys off the case.
14 Judge Ayers had no interest in why even though I
15 waived any attorney-client privilege. The attorneys
16 were free to say anything they wanted about me.

17 But no one has anything negative to say about
18 the way I've handled this because I've been
19 completely forthcoming. I've tried to cooperate.
20 And, Your Honor, it's taking a big toll on me and my
21 family and I just pray that there will be an end in
22 sight. And there's so many reasons to order the
23 discovery that's -- I just, Your Honor, I would feel
24 better if --

25 THE COURT: I'm sorry, Mr. Hanson, we're here on

1 the Transfer of Venue, right?

2 MR. HANSON: Correct. And all of that relates
3 to that, Your Honor, because that's why I want the
4 venue transferred is because I don't understand
5 what's been going on in the Thirteenth Circuit. And
6 maybe, Your Honor, you feel like this is something
7 that you can fix and address.

8 I think it puts you in a hard position working
9 in the same courthouse as Judge Ayers and, you know,
10 working with Mr. Davis and the other attorneys
11 involved within Hillsborough County, you know,
12 that -- I would not want to be put in that position
13 that you're being put in with your colleagues. And
14 the fact that Mr. Davis is fighting so hard against
15 it, against transfer concerns me.

16 I mean, can't we just get a fair process. I
17 don't know why he thinks it's so critical to keep it
18 in Hillsborough County unless there's some strings he
19 can pull or something that he can do to continue down
20 this absurd path. And I don't know how much longer,
21 you know, everyone can keep excelling. My kids are
22 still doing well, by the Grace of God, but they're
23 really put in the middle here.

24 And I know that they're asked to tell their mom
25 things about me. And it's just, it's gotten to the

1 point of the absurd. So, Your Honor, I'll stop
2 there, I just thank you for the time, Your Honor.

3 THE COURT: Okay. I just want to make sure I
4 understand that the basis of your request for the
5 Motion to Transfer Venue has to do with, and I say
6 from your perspective, I'm not saying you're right or
7 you're wrong I just want to make sure that I
8 understand. Your perspective is that the basis for
9 the Transfer of the Venue has been the way the case
10 has been progressing so far, right? And we know that
11 Judge Ayers isn't on the case but also because I am
12 in the same judicial circuit as Judge Ayers, is that
13 correct?

14 MR. HANSON: Yes, Your Honor, and in the same
15 circuit as the attorneys who are practicing. One of
16 my major concerns in the case is that Judge Ayers
17 specifically hid any misconduct from the attorneys.
18 And, you know, Mrs. Hodz's firm had said that they
19 would get the records and then the conversation with
20 Mr. Davis and it changed. And, you know, to me,
21 that's a reasonable basis to object and at least
22 inquire as to why.

23 THE COURT: Well, but Judge Ayers is off the
24 case now and you're saying that that doesn't correct
25 the issue, is that correct, so that's why you want

1 the Transfer of Venue?

2 MR. HANSON: Right. It's just that all of the
3 attorneys and Judges that I've dealt with are in
4 Hillsborough County and I know I have not gotten
5 anything close to a fair process and it terrifies me
6 how brazen the unfairness has been. And I think that
7 going to a different venue serves everyone.

8 THE COURT: Okay. And I'm not, asking and I
9 apologize if you thought I was, I wasn't asking you
10 to reiterate, I just wanted to make sure I
11 understood. Okay. Mr. Davis, response?

12 MR. DAVIS: Yes, Your Honor. I have to, even
13 though it's not really responsive to the legal issue,
14 state that at no time have Mrs. Hanson and I
15 attempted to use the children as pawns and there has
16 been no intentional delay. Mr. Hanson has tried to
17 hijack multiple hearings and just drag them out until
18 they don't finish and that has been the primary
19 reason for the delay in the case.

20 And he alleges that, for example, that we didn't
21 file proper a mandatory disclosure certificate but I
22 think we did, that can come before the Court another
23 time, if it needs to. It's already been before the
24 Court and Judge Ayers asked me to amend it to satisfy
25 Mr. Hanson and we did and we filed it.

1 Notwithstanding, legally, number one, and I've set
2 all this out in a memo that I filed, Judge, 47.011 is
3 the general venue statute.

4 "For the purposes of applying the venue statute
5 to a dissolution of marriage action the cause of
6 action is the last county where the parties resided
7 together as husband and wife with a common intent to
8 remain married." That's Carroll versus Carroll, 347
9 So. 2d 771, that's from the Florida Supreme Court.

10 THE COURT: Sorry, Mr. Davis, let me just stop
11 you real quick.

12 MR. DAVIS: Sure.

13 THE COURT: I apologize if you guys see me
14 looking off to the side I have another screen here
15 with pleadings on it. So if you see me looking this
16 way it's because there's another screen there. I
17 promise you, everyone, I'm still listening. Okay.
18 I'm sorry.

19 MR. DAVIS: I know that, Judge.

20 THE COURT: You can proceed.

21 MR. DAVIS: But for Mr. Hanson's purposes he may
22 or may not. I understand.

23 THE COURT: Sorry.

24 MR. DAVIS: That's okay. And then Copecky,
25 C-O-P-E-C-K-Y, which is 967 So. 2d 1109, Florida

1 Fourth DCA, 2007. The case was filed in the right
2 jurisdiction. Hillsborough is where Mrs. Hanson and
3 Mr. Hanson last resided together as husband and wife
4 with a common intent to remain married to one
5 another.

6 Mrs. Hanson's Amended Petition for Dissolution
7 of Marriage which is Document Identification Number
8 42, specifically, Paragraph Four alleges venue is
9 proper in the Thirteenth Judicial Circuit because the
10 parties last resided together as husband and wife in
11 Hillsborough County. The husband admits that in his
12 answer, specifically, Paragraph Four in his answer.
13 For the Court's edification it's Docket
14 Identification Number 79.

15 Additionally, in Mr. Hanson's counterpetition,
16 Your Honor, Paragraph Three Mr. Hanson alleges that
17 venue is proper in Hillsborough County because this
18 is where the intact marriage of these parties was
19 last evidenced by a continuing union and the intent
20 to remain married to one another. But here's the
21 thing, Mr. Hanson wants to transfer and it appears to
22 me to be relying on 47.122.

23 And 47.122 says, essentially, that a case can be
24 transferred for the interest of justice, the
25 convenience of parties or a witness, I got that

1 backwards because I was going off the top of my head,
2 to any other court of record in which it might have
3 been brought. And those are the important words to
4 consider.

5 Under Vitale versus Vitale and that's
6 V-I-T-A-L-E, 994 So. 2d 1242, Fourth DCA, 2008
7 specifically says that "The statute authorizes a
8 change of venue under Florida's forum
9 non-convenience" which is 47.122 "under certain
10 specified grounds but only to a court in which it
11 might have been brought."

12 And then McGee versus McGee which is 145 So. 3d
13 955 First DCA, 2014, I emailed that one to the Court
14 this morning, I'm reading from the third page of the
15 print-out "The limitation to transfer to quote any
16 other court of record in which it might have been
17 brought in Section 47.122 means that any transfer is
18 limited to a county that would have been a proper
19 venue initially." And that's the problem that we
20 have here is Pasco would not have been initially a
21 proper jurisdiction.

22 A Court cannot transfer for the convenience of
23 parties or witnesses or the interest of justice to a
24 forum that would not have been the appropriate for
25 the filing of the complaint or the petition in the

1 first place. So the law doesn't support the relief
2 Mr. Hanson is seeking. And what I think is
3 respectfully unusual about this is Mr. Hanson says
4 why is Mr. Davis fighting so hard. I'm fighting so
5 hard because he's wrong on the law, that's why.

6 I practice in Pasco regularly. I'm fine going
7 to Pasco on a personal level. I don't find Pasco to
8 be any different than Hillsborough. Good Judges in
9 Pasco, good Judges in Hillsborough. That being said,
10 he just files motions and throws things at the wall
11 to see what will stick. And he is incorrect on the
12 law.

13 I will also note that the majority, if not all,
14 of his motion, Paragraphs One through 98 mostly deal
15 with his complaints about Judge Ayers which is moot
16 now and his complaints about me. And I'm not going
17 anywhere. It's only until you get to Paragraph 97
18 and 98 where he says "It's necessary that the Court
19 transfer the case to a new Judge" which he, actually,
20 got, "or ideally to a new venue such as Pasco County
21 where Wife resides so that the litigants have their
22 disputes resolved by impartial justice free from bias
23 and prejudice."

24 If Mr. Hanson is suggesting that every Judge in
25 the Thirteenth Judicial Circuit is unfair, well,

1 that's just preposterous. The bottom line is that
2 the law does not provide for a transfer because Pasco
3 is not the proper jurisdiction where the case may
4 have been brought. And, respectfully, the Court
5 should deny Mr. Hanson's motion. In our memorandum
6 we request fees and I just ask the Court to reserve
7 on that for future litigation.

8 THE COURT: All right. Mr. Hanson, any
9 response?

10 MR. HANSON: Yes, Your Honor. I noted that
11 Mr. Davis said that I was wrong on the law but he
12 didn't say I was wrong on the facts and he hasn't
13 disputed the facts. And, Your Honor, I would ask you
14 to review my memo in support of the Transfer of Venue
15 in conjunction with the Motions to Disqualify slash
16 Transfer Venue and just consider whether given that
17 Mr. Davis hasn't disputed any of those facts and that
18 they're in the record whether it seems reasonable
19 that I would have concerns about the fairness
20 proceeding in the environment that has allowed --
21 it's not just Judge Ayers, it's Mr. Davis, it's
22 Ms. Hodz and, to some degree, Ms. Samarkos' firm
23 because the same thing happened where they quit
24 trying once they talked to Mr. Davis.

25 So it's a systemic issue in Hillsborough County.

1 And Mr. Davis doesn't seem to care about fairness or,
2 you know, the way that the case has progressed thus
3 far because it's progressed exactly how he wants it
4 to. He's arguing a technicality. And I haven't had
5 a chance to review all of the case law but it doesn't
6 seem, to me, like there's anything that is
7 controlling or anything other than dicta supporting
8 what his position is and his position is nonsensical.

9 It's no matter how unfair the trial is you have
10 to stay in the venue you're at if there's not another
11 venue that would have been appropriate at the start
12 of the case. It really makes sense that Mr. Davis
13 would argue that because that's the way he wants to
14 practice where it's in the venue he wants and he gets
15 the results he wants. And as far as I can tell, Your
16 Honor, it's a systemic issue in Hillsborough County
17 that needs a lot of attention and I'm prepared to
18 bring it to Hillsborough County.

19 I'll be out on the courthouse protesting soon.
20 And I think that I have nothing to hide. I've waived
21 any attorney-client privilege. And for the Court to
22 continue me in this position of not even having
23 reciprocal discovery, Your Honor, and I would ask
24 that you consider just ordering the subpoena that
25 I've been asking for --

1 MR. DAVIS: I have to object to anything being
2 requested that's not part of the motion being even
3 addressed. There's due process rights.

4 THE COURT: I understand. I understand,
5 Mr. Davis.

6 MR. HANSON: My motions do say "all other relief
7 the Court sees fit." And it's an outrage what this
8 Court has done so far, Your Honor, and it's nothing
9 against you but it is an outrage as an attorney
10 that's practiced for 18 years, never had a bar
11 complaint, good reputation for honesty and fairness
12 and being a tough litigator but honesty and fairness,
13 seeing that this could happen to a family and the
14 kids could be used like this, it's horrifying and
15 it's not debatable.

16 If someone looks at the facts, and I'll make
17 sure people look at the facts, it's not debatable
18 what Mr. Davis has done and what Judge Ayers approved
19 of. And if that continues throughout the Thirteenth
20 Circuit it's going to cause more damage to my family
21 and, you know, I'm prepared to deal with whatever it
22 is. I just hope that the Court will offer some
23 relief that allows my family to start moving past
24 this, Your Honor. Thank you for your time.

25 THE COURT: Okay. Thank you both very much for

1 your presentations today. I've reviewed the motion,
2 I've reviewed the memorandums in support of the
3 motion and in opposition. The -- based on my review
4 of the relevant case law and the cases I'm going to
5 deny the Motion to Transfer Venue at this time.
6 Mr. Davis, if you would prepare an order on the same.
7 I'm not going to grant any other relief or,
8 obviously, I'll reserve on anything else. Okay.

9 MR. DAVIS: Yes, sir. Thank you for your time.

10 THE COURT: All right. Any questions,
11 Mr. Hanson?

12 MR. HANSON: No, I'll look into the actions,
13 Your Honor. Thank you for your time.

14 THE COURT: Okay. Any questions, Mr. Davis?

15 MR. DAVIS: No, sir. Nice to see you. Have a
16 good afternoon.

17 THE COURT: Thank you, all, very much. Ms.
18 Taylor, are we good?

19 THE COURT REPORTER: Yes.

20 MR. DAVIS: I think Mrs. Hanson is raising her
21 hand.

22 THE COURT: Mrs. Hanson, you raised your hand?

23 MRS. HANSON: No, no, no, I'm saying bye.

24 MR. DAVIS: Okay. I was just making sure.

25 THE COURT: All right. You all have a good day

1 then. Thank you very much.

2 MR. DAVIS: Thank you, sir. You, as well. Take
3 care.

4 (Whereupon, the proceedings were concluded at
5 12:23 p.m.)

C E R T I F I C A T E

STATE OF FLORIDA)

COUNTY OF HILLSBOROUGH)

I, Christina Ann Taylor, Associate Court Reporter
for the Circuit Court of the Thirteenth Judicial
Circuit of the State of Florida, in and for
Hillsborough County,

DO HEREBY CERTIFY that I was authorized to and
did, through the undersigned Reporter, report in
shorthand the proceedings and evidence in the
above-styled cause, as stated in the caption hereto,
and that the foregoing pages, numbered 1 to 20,
inclusive, constitute a true and correct
transcription of said Reporter's shorthand report of
said proceedings and evidence.

IN WITNESS WHEREOF, I have hereunto set my hand
in the City of Tampa, County of Hillsborough, State
of Florida, this 10th day of June, 2025.

By: Christina Ann Taylor
Christina Ann Taylor, RPR
Notary Public
State of Florida
Commission #HH 346314

Case ID: 08B8419E-180D-4205-8DEE-4089D337A069				
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